

CONTRACT: Annex Beechwood MSBKYS Sample Contract

Contract Details

Contract ID	C-009
Vendor	Company/agent
Expiry Date	2026-05-18
Version	v1.0
Status	Active
Risk Level	Medium
Created By	Sridhar
Uploaded Date	2026-05-18

Contract Content

Annex Beechwood MSBKYS Sample Contract

Contract ID: C-009

This Commercial Services Agreement ("Agreement") is entered into as of the Effective Date specified below by and between the following parties:

1. ****Parties****

This Agreement is made by and between:

(a) [Vendor Name], a [state/country of incorporation] corporation with its principal place of business at [Vendor Address] ("Vendor"); and

(b) [Client Name], a [state/country of incorporation] corporation with its principal place of business at [Client Address] ("Client").

Vendor and Client may each be referred to individually as a "Party" and collectively as the "Parties."

2. ****Definitions****

For the purposes of this Agreement, the following terms shall have the meanings set forth below:

(a) "Effective Date" means the date on which this Agreement is signed by both Parties.

(b) "Services" means the commercial services described in Section 3 below.

(c) "Confidential Information" means any non-public information disclosed by one Party to the other Party in connection with this Agreement, whether oral, written, or electronic.

3. ****Scope of Services****

Vendor agrees to provide the Services as described in Exhibit A attached hereto and incorporated by reference. The Services shall be performed in accordance with the specifications, timelines, and deliverables set forth in Exhibit A.

4. ****Term and Termination****

(a) Term: This Agreement shall commence on the Effective Date and remain in effect for a period of [initial term, e.g., one year], unless terminated earlier in accordance with this Section.

(b) Termination for Convenience: Either Party may terminate this Agreement upon thirty (30) days' written notice to the other Party.

(c) Termination for Cause: Either Party may terminate this Agreement immediately upon written notice if the other Party materially breaches any provision of this Agreement and fails to cure such breach within fifteen (15) days of receiving written notice of the breach.

(d) Effect of Termination: Upon termination, Vendor shall cease all Services and Client shall pay Vendor for all Services performed up to the date of termination.

5. ****Fees and Payment****

(a) Fees: Client shall pay Vendor the fees set forth in Exhibit B attached hereto and incorporated by reference.

(b) Payment Terms: Vendor shall invoice Client monthly, and Client shall pay all invoices within thirty (30) days of receipt.

(c) Late Payments: Any amounts not paid when due shall accrue interest at the rate of [interest rate, e.g., 1.5%] per month or the maximum rate permitted by law, whichever is lower.

6. ****Confidentiality****

(a) Obligations: Each Party agrees to maintain the confidentiality of the other Party's Confidential Information and to use such information solely for the purposes of performing its obligations under this Agreement.

(b) Exceptions: Confidential Information does not include information that is publicly available, independently developed, or lawfully obtained from a third party.

7. ****Data Protection****

Vendor shall comply with all applicable data protection laws and regulations in connection with the Services. Vendor shall implement appropriate technical and organizational measures to protect any personal data processed under this Agreement.

8. ****Intellectual Property****

(a) Ownership: All intellectual property rights in any materials created by Vendor in connection with the Services shall be owned by Vendor, unless otherwise specified in Exhibit C.

(b) License: Vendor grants Client a non-exclusive, non-transferable license to use such materials solely for the purposes of this Agreement.

9. ****Warranties****

(a) Vendor warrants that the Services will be performed in a professional and workmanlike manner and in accordance with industry standards.

(b) Disclaimer: Except as expressly provided in this Agreement, Vendor disclaims all other warranties, whether express or implied, including warranties of merchantability and fitness for a particular purpose.

10. ****Liability Limitation****

(a) Exclusion of Damages: Neither Party shall be liable to the other Party for any indirect, incidental, consequential, or punitive damages arising out of or related to this Agreement.

(b) Cap on Liability: Vendor's total liability under this Agreement shall not exceed the total fees paid by Client to Vendor under this Agreement during the twelve (12) months preceding the event giving rise to the claim.

11. ****Indemnity****

(a) Vendor Indemnity: Vendor shall indemnify, defend, and hold harmless Client from and against any claims, liabilities, or damages arising out of Vendor's breach of this Agreement or its negligence in performing the Services.

(b) Client Indemnity: Client shall indemnify, defend, and hold harmless Vendor from and against any claims, liabilities, or damages arising out of Client's breach of this Agreement or its use of the Services.

12. ****Governing Law****

This Agreement shall be governed by and construed in accordance with the laws of the State of [state], without regard to its conflict of laws principles.

13. ****Dispute Resolution****

(a) Negotiation: The Parties shall attempt to resolve any disputes arising under this Agreement through good faith negotiations.

(b) Arbitration: If the Parties are unable to resolve the dispute through negotiation, the dispute shall be submitted to binding arbitration in accordance with the rules of the [arbitration organization, e.g., American Arbitration Association]. The arbitration shall take place in [city, state].

14. ****Miscellaneous****

(a) Entire Agreement: This Agreement constitutes the entire agreement between the Parties and supersedes all prior agreements and understandings relating to the subject matter hereof.

(b) Amendments: This Agreement may only be amended by a written agreement signed by both Parties.

(c) Assignment: Neither Party may assign this Agreement without the prior written consent of the other Party.

(d) Notices: All notices under this Agreement shall be in writing and delivered to the addresses specified above.

(e) Severability: If any provision of this Agreement is found to be invalid or unenforceable, the remaining provisions shall remain in full force and effect.

IN WITNESS WHEREOF, the Parties have executed this Agreement as of the Effective Date.

[Vendor Name]

By: _____

Name: _____

Title: _____

Date: _____

[Client Name]

By: _____

Name: _____

Title: _____

Date: _____

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